

24STCV34611 24STCV34611

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Case Number: 24STCV34611 Hearing Date: September 28, 2026 Dept: 510

No.

10 – Nishara J. Abeyguneratne, et al. v. Mercedes-Benz USA LLC, et al.

Plaintiff

Nishara J. Abeyguneratne's Motions for Orders Deeming Requests for Admission

Admitted and Compelling Responses to Form Interrogatories, Special

Interrogatories, and Requests for Production

Plaintiff

Nishara J. Abeyguneratne moves for an order deeming that Defendant Mercedes-Benz

USA LLC has admitted the truth of the matters specified in Plaintiff's requests

for admission. Plaintiff also moves for orders compelling Defendant to respond

to form interrogatories, special interrogatories, and requests for production.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code

Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for

production], 2033.250(a) [requests for admission].) When the responding party fails to serve a timely

response to interrogatories or requests for production, the requesting party

may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b)

[interrogatories], 2031.300(b) [requests for production].) Failing to serve a

timely response results in waiving any objections. (Code Civ. Proc., §§

2030.290(a), 2031.300(a).) When a party fails to serve a timely response to

requests for admission, "[t]he requesting party may move for an order that the

genuineness of any documents and the truth of any matters specified in the

requests be deemed admitted, as well as for a monetary sanction." (Code Civ.

Proc., § 2033.280(b).)

Defendant failed to serve timely responses to Plaintiff's discovery requests. Plaintiff served her requests for admission, form interrogatories, special interrogatories, and requests for production on Defendant on March 5, 2025. (Wong Decls., ¶ 3.) As of the date these motions were filed, Defendant had still not responded. (Id., ¶ 5.) Plaintiff is therefore entitled to an order deeming admitted the matters specified in its requests for admission and to orders compelling Defendant to respond to written discovery.

In opposition, Defendant makes two arguments.

First, Defendant argues that Plaintiff failed to serve former counsel at the proper e-service address. According to Sabrina Narain, former counsel on the case, Plaintiff served the discovery requests to FCAWarranty@ltlattorneys.com. (Narain Decl., ¶ 6.) However, Defendant's answer listed ltl-e-service@ltlattorneys.com as the proper service address. (Id., ¶ 4.) Because of this, Narain declares, counsel "never received the written discovery requests." (Id., ¶ 7.) Defendant argues that this improper service on former counsel never started the 30-day clock to serve discovery responses.

The Court disagrees. Defendant's answer indicates four email addresses for counsel: sabrina.narain@ltlattorneys.com, cynthia.sun@ltlattorneys.com, jacky.wang@ltlattorneys.com, and ltl-e-service@ltlattorneys.com. (See Answer filed 2/26/25.) Plaintiff served her discovery requests to: sabrina.narain@ltlattorneys.com, jacky.wang@ltlattorneys.com, and FCAWarranty@ltlattorneys.com. (Wong Decls., Ex. 2.) Neither former counsel Narain nor current counsel explains why service via email to two former attorneys of record's direct email addresses did not constitute proper service. Service was proper and started the 30-day clock to respond.

Second, Defendant argues that any failure to respond was based on mistake, inadvertence, or excusable neglect under Code of Civil Procedure section 2030.290(a)(2). However, this statute references a party's request for relief from waiver of objections, not relief from a motion to compel responses. Even if the statute were applicable, Defendant does not meet the first requirement cited in subdivision (a)(1): "The party has subsequently served a response that is in substantial compliance" Defendant does not show that it has since served discovery responses, nor has it attached any proof they were served on Plaintiff.

Sanctions

Plaintiff

also requests monetary sanctions against Defendant. Code of Civil Procedure section 2031.300(c) provides, “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See also Code Civ. Proc., § 2030.290(c) [interrogatories].) “It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280(c).) Defendant failed to provide any responses by the deadline. There is no evidence that Defendant acted with substantial justification.

The

Court finds sanctions are appropriate. The Court exercises its discretion to award Plaintiff the requested sanctions in full in the amount of \$2,448.

Disposition

Plaintiff

Nishara J. Abeyguneratne's motions to compel responses to form interrogatories, special interrogatories, and request for production are granted. Defendant Mercedes-Benz USA LLC is ordered to serve verified responses without objections within 10 days. Plaintiff Nishara J. Abeyguneratne's motion to deem matters admitted is granted. Plaintiff's request for admissions as to Defendant Mercedes-Benz USA LLC are hereby deemed admitted.

Defendant

Mercedes-Benz USA LLC and its counsel of record are ordered to pay Plaintiff Nishara J. Abeyguneratne \$2,448 in sanctions within 21 days.